

Smt. Babli Devi v. Uttar Pradesh Power Corporation

Allahabad High Court · Division Bench · 5 June 2024 · 2024:AHC:102040-DB · Writ - C No. 19781 of 2024 · **Writ disposed; decide Clause 4.4 indemnity application within one week.**

HEADNOTE

An occupant without a title deed may apply for a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005, with an indemnity bond in the form of Annexure 4.2. The High Court disposed of the writ directing that if the petitioner so applies within one week, the licensee shall decide the application within one week thereafter.

FACTUAL SUMMARY

The petitioner is the wife of respondent No. 4. After relations between them soured, the husband caused the electricity connection of the house where she was staying to be disconnected. She applied to the U.P. Power Corporation for a fresh connection, but it was not provided because of shortcomings in the application form. She invoked the High Court's writ jurisdiction seeking supply to the premises she occupied.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Where the occupant of premises has no title deed, she may apply for a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005, with an indemnity bond as provided by Annexure 4.2. If the petitioner so applies within one week, the licensee shall decide that application within one week thereafter. The writ was disposed of on that direction; connection was not ordered. ¶ 3-5

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond

An occupant without a title deed may apply for a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005, with an indemnity bond in the form of Annexure 4.2.. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ENTITLEMENT TO A NEW CONNECTION

Left to the licensee on a Clause 4.4 application; no mandamus to connect. ¶ 4-5